Perfect365 Privacy Policy

Updated: August 19, 2025

Protecting your privacy is important to Perfect365, Inc. ("Perfect365," "us," "our," or "we"). This Privacy Policy contains important information on how and why we collect, store, use, and share your personal information or personal data (used interchangeably in this Privacy Policy). It also explains your rights in relation to your personal information and how to contact us or supervisory authorities in the event you have a complaint.

Please read this Privacy Policy before using the Perfect365 family of websites, mobile products, and services. BY USING ANY OF OUR PRODUCTS OR SERVICES OR COMMUNICATING WITH US, YOU CONSENT TO THE COLLECTION, TRANSFER, PROCESS, STORAGE, DISCLOSURE, AND USE OF YOUR INFORMATION AS DESCRIBED IN THIS PRIVACY POLICY. IF YOU DO NOT AGREE WITH THIS, PLEASE DO NOT USE AN USE OUR PRODUCTS OR SERVICES.

1. SCOPE OF PRIVACY POLICY

This Policy explains our online and offline information practices, the kinds of information we may collect, how we intend to use and share that information, and how you can opt-out of a use or correct or change such information. This Policy applies to information we may collect from you or that you may provide when you visit any of our mobile products or services, including but not limited to the mobile applications, Perfect365, Perfect365 Video, Perfect365 Studio, and Perfect365 SoREAL AI (each, an "Application" and collectively the "Applications"), the website perfect365.com and any other websites and subdomains provided by us on which a link to this Policy is displayed (the "Website"), or when you communicate with us through a "@perfect365.com" email address or otherwise provide us with information, including through a third party on your behalf (the "Communications"), and our practices for collecting, using, maintaining, protecting, and disclosing that information (Applications, Website, and Communications, collectively, the "Services"). This Policy does not apply to information collected by any third party, including through any application or content (including advertising), that may link to or be accessible from or through the Services.

Please read this Policy carefully to understand our policies and practices regarding your information and how we will treat it.

2. INFORMATION WE COLLECT

We may collect and use the following personal information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household that is commonly gathered and produced by automatic means, provided directly from you, and/or by your interactions with us or our Services.

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- Your username, password and email address when you register for an account on an Application
- Profile information that you provide for your user profile (e.g., name, picture, phone number, gender) on an Application
- Your content (e.g., photos, facial scans, comments, and other materials) that you post or upload to an Application
- Information you provide to other users through the Applications
- Information that you submit to us in a request through the Website or other Communication

Information We Collect Automatically from Your Use of the Applications

- Payment Information. If you complete an in-app purchase through an Application using either a traditional payment method or virtual currency, we or our third-party payment or virtual currency processors collect information necessary to process and facilitate your transactions, including:
- The date, time, and amount of a transaction
- For traditional payment transactions, payment (e.g., credit card) and billing information.
- For virtual currency transactions, information identifying your account information and the account you are transacting with, your public wallet address, your account balance, your transaction history, blockchain transaction identifiers (e.g., the transaction hash), and the public wallet address of payers and payees. You should be aware that when you earn and spend using virtual currency, your blockchain transactions will be publicly visible to anyone who has access to the blockchain.
- Analytics Information. We use third-party analytics tools to help us measure traffic and usage trends for the Applications. These tools collect information sent by your device to our Application, including the content and ads that you view or click, and other information that assists us in improving the Applications. We collect and use this analytics information with analytics information from other users so that it cannot reasonably be used to identify any particular individual user.
- Location Information. Upon your consent, we may collect different types of information about your general location (e.g., IP address, zip code) or more specific location information (e.g., precise location from your mobile GPS) through methods such as mobile software development kits ("SDK") that allow us to periodically determine your location, including your location relative to and within third party merchant locations, and share such information with third parties, for purposes related to advertising (e.g. customized ads in an Application), analytics, attribution (e.g., measuring ad performance), and research. You may prevent location information from being collected by this or other apps, through your device settings (but this may affect the functionality of certain Application features). We may collect this information when you use the Applications or when any Application runs in the background on your device.
- Log information. When you use the Applications, we may automatically collect and store certain information in server logs. This may include:
- Information on how you interact with the Applications
- IP address
- Device event information such as crashes, system activity, hardware settings, browser type, browser language, the date and time of your request and referral URL
- Data derived from facial and other detection scans. We may collect facial detection scan data (from uploaded images or photos taken through an Application) as necessary to provide the functionality of the Applications, e.g., scanning face to apply makeup/looks.

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images you upload onto the Application ("Inputs"). In order to generate the Outputs and to train the AI model, the Application may scan the Inputs to determine the posture, location, topography, and other non-identifying characteristics of faces that appear in frame. The Inputs are immediately deleted once the avatar is created. Your purchased avatars are stored on our server so that they remain accessible to you through the Application at any time and from any device until you decide to delete them. The purchased avatars that you decide to download are stored in your device. We currently use the neural network model Stable Diffusion to generate the personalized avatars for the SoREAL AI Application. We do not use the images or avatars to identify any individual user, for authentication, advertising, or marketing purposes, to otherwise target a user in a similar manner, to build a user profile, or to otherwise attempt, facilitate, or encourage third parties to identify anonymous users or reconstruct user profiles. We do not transfer, share, sell, or otherwise provide your content or avatars to advertising platforms, analytics providers, data brokers, information resellers or other such parties.

- Device and Usage Information. We may collect device and usage information such as:
- Precise geolocation data pertaining to a user's devices (only upon your consent), which may be expressed by latitude-longitude coordinates obtained through GPS tools, WiFi data, cell tower triangulation or other techniques (collectively, "Device Geolocation Data") and linked to a device identifier, such as the IDFA for iOS devices or Android ID for Android devices.
- Predicted or actual data about a user such as age, gender, date of birth, street address; predicted or actual characteristics or interests; and any information that users provide to us or to our users.
- Other information about a user's device, such as: device type (e.g., tablet, smartphone), operating system, IP address, network provider, mobile carrier, mobile browser type (e.g., Firefox, Chrome, Safari), other apps and SDKs installed on the device, timestamp, time zone, information about the speed, bearing, orientation, and altitude of a device, or other device-identifying information.
- Information about the possible relationships among different devices.
- Data about user activities (e.g., the pages you view, the time and duration of your activities in the App) that helps us determine how a user interacts with advertising or content, such as determining whether a user who viewed a particular advertisement ultimately purchased the advertised product or service.
- Cookies and Similar Technologies. When you use the Applications, we allow third-party companies to collect certain information. These companies may utilize cookies, pixels, or other similar technologies to collect and use non-personally identifiable information in order to provide advertisements about goods and services likely to be of greater interest to you. To learn more about this behavioral advertising practice or to opt-out of this type of advertising, you can visit the websites of the Digital Advertising Alliance at https://www.aboutads.info and Networking Advertising Initiative at networkadvertising.org/choices/. You can also control the use of cookies on your device at any time by changing your preferences or options in your browser settings. Each browser provides different mechanisms for managing cookies. You can usually find these settings in the "Options" or "Preferences" menu of your browser; otherwise, look at your browser's help menu to determine the best way to modify your browser's cookie storage. You can also block, disable, or delete the cookies that are stored on your device. However, blocking, disabling, or deleting cookies may limit your ability to view all the pages in the Applications.
- Local Storage. We may access metadata and other information associated with other files stored on your device. This may include, for example, your photographs in order to provide the functionality of the Applications.

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this Privacy Policy.

- Certain location, device, and usage information may be collected when any Application is in use or runs in the background on your device. If you do not want this information to be linked to your device, you may go to your device "Settings" (which are somewhat different for iOS and Android devices) and opt out of interest-based or personalized advertising.

Information We Collect from Your Use of the Website

We use cookies or other automatic data collection techniques, which are small data files stored on a visitor's computer or internet-enabled device that serve a number of purposes such as enhancing your on-line experience when visiting our Website only.

You can control or set your cookies, you may also set your browser to block all cookies, including cookies associated with our Website, or to indicate when a cookie is being set by us. However, it's important to remember that our Website and/or settings and preferences controlled by such cookies may not function properly if your cookies are disabled. For example, we may not remember your language preferences. Most web browsers automatically accept cookies but provide controls that allow you to turn off, block or delete them. Learn more at https://support.google.com/chrome/answer/95647?co=GENIE.Platform%3DAndroid&hl=en.

3. HOW WE USE YOUR INFORMATION

Generally, and without limiting the uses of information we describe in this Privacy Policy, including in Section 2 (Information We Collect), we may use information that we receive and the choices you make in your settings:

- To provide the functionality of the Applications
- To help us develop, deliver, test and improve the Applications
- To monitor metrics such as total number of visitors, traffic, and demographic patterns
- To provide personalized content and information to you and others, which could include sending you promotional messages, marketing, advertising and other information that may be of interest to you
- To diagnose or fix technology problems
- To allow us to keep you posted on Perfect365's latest product announcements, application updates, and upcoming events
- To provide customer support and respond to your inquiries and requests
- To allow other users to contact you through the Applications (as further described below)
- To administer referral programs, rewards, surveys, sweepstakes, contests, or other promotional activities or events sponsored or managed by us or our third-party business partners
- To find and prevent fraud
- To resolve disputes, to protect the rights, property, or safety of Perfect365, our Application visitors, customers, or the public, and to enforce any legal terms that govern your use of the Applications or our other services and products
- To comply with our legal and regulatory obligations
- For the performance of any contract with you or to take steps at your request before entering into a

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- To provide you with employment

4. INFORMATION SHARING AND DISCLOSURE TO THIRD PARTIES

Perfect365 treats your personal information with care. We only pass personal information to our affiliates and third parties to the extent described here and within the scope of the purpose limitation under applicable data protection law.

Third-Party Service Providers

We use a variety of third-party service providers to help us provide the Services, including business analytics, marketing, payment processing, IT, artificial intelligence, and virtual currency providers. These providers have limited access to your information to perform these tasks on our behalf and are contractually obligated to use it consistent with this Privacy Policy.

For the SoREAL AI Application, we use neural network model Stable Diffusion powered by Stability.ai for the Perfect365 SoReal AI app that allows you to generate personalized SoREAL AI avatars. While we make best efforts to moderate the settings of the Perfect365 SoREAL AI app, it is still possible that you may encounter content that you or others may view as offensive or inappropriate. Please contact us at support@perfect365.com if you find any content to be offensive and/or inappropriate to you, and we will take action to assist in training the algorithm better. However, you acknowledge that your use of the SoReal AI app is at your own risk and that we disclaim any responsibility for the images generated by the Perfect365 SoReal AI app. For any and all important questions about Stable Diffusion, you can visit the Stability.ai website.

We have also integrated the consent management tool, “Consent Manager” (www.consentmanager.net) from Consent Manager AB (Håltgelvågen 1b, 72348 Västerås, Sweden, mail@consentmanager.net), in our Services to obtain consent for data processing and use of cookies or comparable functions. With the help of Consent Manager, you can provide your consent for certain functionalities of our Services, e.g. for the purpose of integrating external elements, integrating streaming content, statistical analysis, measurement and personalized advertising, and can grant or reject your consent for all functions or give your consent for individual purposes or individual functions. The settings you have made can also be changed afterwards.

The purpose of integrating Consent Manager is to let users of our Services make decisions about their information and, as part of the further use of our Services, to offer the option of changing settings that have already been made. By using Consent Manager, personal data and information from the end devices used, such as the IP address, are processed by Consent Manager. In addition, the processed information may also be stored on your device.

The legal basis for processing is Art. 6 Para. 1 S. 1 lit. c) in conjunction with Art. 6 para. 3 sentence 1 lit. a) in conjunction with Art. 7 para. 1 GDPR and, in the alternative, lit. f). By processing the data, Consent Manager helps us to fulfill our legal obligations (e.g. obligation to provide evidence). Our legitimate interests in processing lie in the storage of user settings and preferences with regard to the use of cookies and other functionalities. Consent Manager stores your data as long as your user settings are active. After two years after making the user settings, the consent will be asked again. The user settings made are then saved again

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Third-Party Advertisers, Advertising Network, Agencies, Marketers, Cybersecurity Partners

We may share or disclose aggregated, usage information, geolocation information and/or device-level information (such as anonymous usage data, platform types, number of clicks, location data etc.) with unaffiliated partners and third parties (e.g. advertisers, advertising networks and platforms, agencies, other marketers, retailers, cybersecurity partners) that wish to market products or services to you, in order to improve connectivity and application experiences on wireless networks, or for cybersecurity purposes. You can control or disable the use of location services for the Services in the device's settings menu. See Section 6 (Your Choices About Your Information) of this Privacy Policy for further instructions.

Additional privacy terms from select partners can be found here.

Other Users

Any information that you provide to other users, including beauty professionals, via the Services, are shared and disclosed to such other users. By sending your information to other users, you acknowledge and agree that they may contact you via the applicable Application.

Business Transfers and Affiliates

We may share your information with companies or organizations connected or affiliated with Perfect365. We may also transfer your information to an affiliate, a subsidiary or a third party in the event of any reorganization, merger, sale, joint venture, assignment, transfer or other disposition of all or any portion of Perfect365's business, assets or stock, including, without limitation, in connection with any bankruptcy or similar proceeding.

Legal Disclosures

Notwithstanding anything to the contrary in this Privacy Policy, we may preserve or disclose your information if we believe that it is reasonably necessary to comply with a law, regulation, legal process, or governmental request; to protect the safety of any person; to address fraud, security or technical issues; or to protect our or our users' rights or property. However, nothing in this Privacy Policy is intended to limit any legal defenses or objections that you may have to a third party's, including a government's, request to disclose your information.

5. INFORMATION SOLD OR DISCLOSED FOR A BUSINESS PURPOSE

During the last twelve (12) months, Perfect365 has sold or disclosed personal information, including some or all of the categories of information described in Section 2 (Information We Collect), to third parties for business and commercial purposes. More specifically, Perfect365 has sold or disclosed the above-described personal information with third parties as described in Section 4 (Information Sharing and Disclosure to Third Parties), including: (a) to our business partners for enabling and improving their marketing and advertising campaigns, from identifying potentially interested consumers to measuring the effectiveness of the marketing and advertising campaign, including marketing and user and data analytics; (b) to our service providers and cybersecurity business partners, for disease prevention, to improve connectivity and application experiences on wireless networks, and for cybersecurity purposes, and (c) to our service providers

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Perfect365 does not sell personal information to individual consumers.

Perfect365 does not sell personal information about consumers younger than 18 for any purpose.

Perfect365 does not engage in profiling in furtherance of "decisions that produce legal or similarly significant effects."

While we have sold or shared for a business purpose the above information in the last 12 months, you have the right under the CCPA and certain other privacy and data protection laws, as applicable, to opt-out of the sale of your personal information. See Section 6 (Your Choices About Your Information) and Section 12 (Additional State Privacy Rights) for more information. If you exercise your right to opt-out of the sale of your personal information, we will refrain from selling your personal information, unless you subsequently provide express authorization for the sale of your personal information. To opt-out of the sale of your personal information, visit the 'Settings' or 'Me' tab in each Application, click on 'Privacy', and slide the 'Do Not Sell My Personal Information' switch off.

6. YOUR CHOICES ABOUT YOUR INFORMATION

Account Information

You may update or correct information you have provided to us by going into the settings screen (or "Me") within the applicable Application. If you wish to deactivate your account, please delete the applicable Application, but note that we may retain your information as required by law and for business purposes. Refer below for additional information on your right to deletion and our deletion practices.

Promotional Communications

You may opt out of receiving promotional communications from us by following the instructions in those messages. If you opt out, please note that we may still send you Application-related communications, such as those about your account or our ongoing business relations, like notifications about updates to this Privacy Policy.

Interest-Based Advertising Services

You may opt-out from any interest-based advertising by turning on "Limit Ad Tracking" in your device settings.

To limit Ad Track on an Apple device, see instructions at: https://support.apple.com/en-us/HT202074

Apple has recently added a feature where, upon download of an Application, a popup stating "Allow Cross App Tracking" will appear that will allow the user to select their preferences for tracking and targeted advertising. The user can also go into their settings and disable or enable both tracking and location services for all applications.

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Personalized Ads."

When you have opted out using this setting on a device, advertisers will not use in-app information collected from that device to infer your interests or serve ads to that device that are targeted based on your inferred interests. Please note, however, that opting-out will not block general advertisements that are sent at random, and not tied to the perceived interest of the user of a particular device.

Users may learn more about personalized and behavioral advertising and how to opt out of this type of advertising from the Digital Advertising Alliance at https://www.aboutads.info and Networking Advertising Initiative at networkadvertising.org/choices/.

Control or Disable the Collection of Geolocation Information

We do not collect geolocation information from you unless we obtain your explicit consent through the device's settings (e.g., "Location Services"). You can also control the collection of certain precise location information by changing the preferences on your mobile device (certain services may lose functionality as a result).

Push Notifications

We may send push notifications to your mobile device. You can deactivate these messages at any time by changing the notification settings within the Applications or your device settings.

Third Party Use of Cookies and Other Tracking Technologies

Some content or applications related to the Applications are served by third-parties, including advertisers, ad networks and servers, content providers, service providers, and application providers. These third parties may use cookies, alone or in conjunction with web beacons or other tracking technologies, to collect information about you when you use the Applications. The information they collect may be associated with your personal information or they may collect information, including personal information, about your online activities over time and across different websites and other online services. They may use this information to provide you with interest-based (behavioral) advertising or other targeted content.

We do not control these third parties' tracking technologies or how they may be used. If you have any questions about an advertisement or other targeted content, you should contact the responsible provider directly.

7. HOW LONG WE KEEP YOUR INFORMATION

We will not retain your personal information for longer than is allowed under the applicable data protection laws and regulations or for longer than is justified for the purposes for which it was originally collected. We will delete the personal information when we no longer need it for the purposes for which it was collected, unless Perfect365 is required by law to keep data for a certain period of time.

8. CHILDREN'S PRIVACY

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ALLOW SUCH PERSONS TO REGISTER FOR ANY APPLICATION. THE APPLICATIONS AND THEIR CONTENT ARE NOT DIRECTED AT CHILDREN UNDER THE AGE OF 16.

IF YOU ARE UNDER THE AGE OF SIXTEEN (16) YOU MAY NOT USE THE APPLICATIONS. IF YOU ARE BETWEEN SIXTEEN (16) AND EIGHTEEN (18) YEARS OLD, YOU MUST REVIEW THIS PRIVACY POLICY WITH YOUR PARENT OR GUARDIAN. IN THE EVENT THAT WE LEARN THAT WE HAVE COLLECTED PERSONAL INFORMATION FROM A CHILD UNDER AGE 16 WITHOUT PARENTAL CONSENT, WE WILL DELETE THAT INFORMATION AS QUICKLY AS POSSIBLE. IF YOU BELIEVE THAT WE MIGHT HAVE ANY INFORMATION FROM OR ABOUT A CHILD UNDER 16, PLEASE CONTACT US AT LEGAL@PERFECT365.COM AND WE WILL IMMEDIATELY TAKE STEPS REQUIRED TO DELETE THE INFORMATION AND OTHERWISE COMPLY WITH APPLICABLE LAW.

9. TRANSFERRING YOUR DATA

Perfect365 may transmit your information to its services, data centers, or service providers outside of the United States for storage and/or processing. As such, we and our service providers may transfer your personal data to, or access it in, jurisdictions that may not provide equivalent levels of data protection as your home jurisdiction. We will take steps to ensure that your personal data receives an adequate level of protection in the jurisdictions in which we process it, including through appropriate written data processing terms and/or data transfer agreements.

By registering for and using any Application, you consent to the transfer of information to any country in which Perfect365, its affiliates or service providers maintain facilities and the use and disclosure of information about you as described in this Privacy Policy.

10. SECURITY

We use commercially reasonable safeguards to help keep the information collected through the Services secure. However, Perfect365 cannot ensure the security of any information you transmit to any Services or guarantee that information on the Services may not be accessed, disclosed, altered, or destroyed. You are responsible for maintaining the secrecy of your unique passwords and account information at all times. Your privacy settings may also be affected by changes the social media services you connect to Perfect365 make to their services. We are not responsible for the functionality, privacy, or security measures of any other organization.

Perfect365 has implemented appropriate technical and organizational measures to ensure an appropriate security level for the risk involved. The risk analysis takes into account the risk of infringing against the rights of individuals concerned, the costs for implementation, as well as the type, extent, context and purposes of the data processing.

These measures include:

- Access to Perfect365's IT systems is monitored in order to detect and prevent misuse.
- Personal information is stored on secure servers behind firewalls.

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with the processing, as well as the effectiveness of the technical and organizational measures for ensuring the security of the processing.

11. EXTERNAL LINKS

The Services may contain links to third party sites or online services. We are not responsible for the practices of such third parties, whose information practices are subject to their own policies and procedures, not to this Privacy Policy.

12. DATA PRIVACY RIGHTS

If you are located in the European Union, a resident of California and any other state of the United States with applicable privacy laws, please refer to the relevant sections below. For all other regions, upon your request and as required by applicable law, we will:

- Provide you with information about the personal data we hold about you;
- Update or correct that personal data or guide you to the appropriate tools to do so; and/or
- Delete that personal data or direct you to the relevant tools to manage its removal.

To exercise any of your rights regarding personal data under our control, please email us at privacy@perfect365.com. Where permitted by law, we may decline to process requests that are excessively repetitive, unduly burdensome, or that compromise the privacy of others. If you are an account holder or a user under a licensed account, you may also manage your personal data directly by accessing and updating your account settings."

13. ADDITIONAL STATE PRIVACY RIGHTS

As described above, Perfect365 collects various categories of personal information when you use the Services, including identifiers, commercial information, internet or other electronic network or device activity information, geolocation data, and professional information. A detailed description of the categories of personal information we collect and how we use such personal information is provided above in Section 2 (Information We Collect) and Section 3 (How We Use Your Information). Section 4 (Information Sharing and Disclosure to Third Parties) and Section 5 (Information Sold or Disclosed for a Business Purpose) describe the categories of third parties with whom we share personal information for a business purpose. Perfect365 does not and will not use facial recognition or identification technology in providing you with any products or services. Perfect365 does not store any Biometric Information and therefore cannot disclose or disseminate any biometric data to any third party for any promotional purposes.

In the context of processing personal information of U.S. residents, certain U.S. states, including California, Virginia, Colorado, Connecticut, Utah, Texas, Oregon, Florida, Montana, Nebraska, Delaware, Iowa, and New Jersey, provide their residents with additional rights under consumer privacy laws based on the collection, use, and sharing of their personal information (if such laws are applicable to the data collector/processor).

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California

If you are a California resident, you may have the following rights (free of charge) under the California Consumer Privacy Act and the California Privacy Rights Act with respect to your Personal Information:

- Disclosure of Personal Information We Collect About You. You have the right to request we disclose to you free of charge the following information covering the 12 months preceding your request:
  - The categories of personal information we have collected about you;
  - The categories of sources from which the personal information is collected;
  - Our business or commercial purpose for collecting or selling personal information;
  - The categories of third parties with whom we share personal information, if any; and
  - The specific pieces of personal information we have collected about you.

- Disclosure of Personal Information Sold or Used for a Business Purpose. In connection with any personal information we may sell or disclose to a third party for a business purpose, you have the right to know:
  - The categories of personal information about you that we sold and the categories of third parties to whom the personal information was sold; and
  - The categories of personal information that we disclosed about you for a business purpose.

- Opt-Out. You have the right under the CCPA and certain other privacy and data protection laws, as applicable, to opt-out of the sale of your personal information. If you exercise your right to opt-out of the sale or sharing of your personal information, we will refrain from selling or sharing your personal information, unless you subsequently provide express authorization for the sale of your personal information. To opt-out of the sale of your personal information, visit “Settings” in the each Application, click on “Privacy Policy,” and slide the “Do Not Sell My Personal Information” switch off.

- Correct Inaccurate Personal Information. You have the right to correct incomplete or inaccurate personal information.

- Deletion. Subject to certain exceptions set out below, on receipt of a verifiable request from you, you have the right to request that we:
  - Delete your personal information from our records; and
  - Direct any service providers to delete your personal information from their records.

- Please note that we may not delete your personal information if it is necessary to:
  - Complete the transaction for which the personal information was collected, fulfill the terms of a written warranty or product recall conducted in accordance with federal law, provide a good or service requested by you, or reasonably anticipated within the context of our ongoing business relationship with you, or otherwise perform a contract between you and us;
  - Detect security incidents, protect against malicious, deceptive, fraudulent, or illegal activity; or prosecute those responsible for that activity;
  - Debug to identify and repair errors that impair existing intended functionality;
  - Exercise free speech, ensure the right of another consumer to exercise his or her right of free speech, or exercise another right provided for by law;
  - Comply with the California Electronic Communications Privacy Act;

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likely to render impossible or seriously impair the achievement of such research, provided we have obtained your informed consent;
    - Enable solely internal uses that are reasonably aligned with your expectations based on your relationship with us;
    - Comply with an existing legal obligation; or
    - Otherwise use your personal information, internally, in a lawful manner that is compatible with the context in which you provided the information.

- Limit Sensitive Personal Information. You have the right under the CPRA to request that we limit the use of your sensitive personal information to only that which is necessary for providing products or services to consumers. Under the CPRA, the "Sensitive Data" categories include:
    - Social Security numbers (SSNs)
    - Driver's license
    - Financial account or card numbers
    - Precise geolocation
    - Racial and ethnic characteristics
    - Religious and philosophical beliefs
    - Union membership
    - Contents of mail, email, and text messages
    - Genetic and biometric data

- Protection Against Discrimination. You have the right to not be discriminated against by us because you exercised any of your rights under the CCPA. This means we cannot, among other things:
    - Deny goods or services to you;
    - Charge different prices or rates for goods or services, including through the use of discounts or other benefits or imposing penalties;
    - Provide a different level or quality of goods or services to you; or
    - Suggest that you will receive a different price or rate for goods or services or a different level or quality of goods or services.

Please note that we are not required to: retain any personal information about you that was collected for a single one-time transaction if, in the ordinary course of business, that information about you is not retained; reidentify or otherwise link any data that, in the ordinary course of business, is not maintained in a manner that would be considered personal information; or provide the personal information to you more than twice in a 12-month period.

Please note that we may charge a different price or rate or provide a different level or quality of services to you, if that difference is reasonably related to the value provided to our business by your personal information.

We will work to process all verified requests within 45 days. If we need an extension for up to an additional 45 days in order to process your request, we will provide you with an explanation for the delay.

We are legally obligated to verify your identity when you submit a request. We may request additional information from you to verify your identity. If we are unable to confirm your identity, we may refuse your rights request.

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own identity directly with us and confirm with us that you provided the authorized agent permission to submit the rights request. This verification process is not necessary if your authorized agent provides documentation showing that the authorized agent has power of attorney to act on your behalf.

Other States

If you are a resident of Virginia, Colorado, Connecticut, Utah, Texas, Oregon, Florida, Montana, Nebraska, Delaware, Iowa, or New Jersey, you may have the following rights (free of charge), unless an exception is available:

- Right to know what personal data has been collected about you and to access that information
- Right to correct inaccuracies in your personal data
- Right to deletion of your personal data
- Right to a copy of your personal data, to the extent technically feasible, in readily usable format that allows you to transmit the personal data to another entity
- Right to opt-out of the processing of your personal data for purposes of targeted advertising or the sale of your personal data
- Right to not to face retaliation or be discriminated against because of any exercise of your rights under privacy laws

Exercise Your Rights

You can exercise the foregoing rights at any time by contacting us at privacy@perfect365.com (see additional contact details below). You can also opt-out of any sale of covered information collected about you by visiting "Settings" in the applicable Application and sliding the "Do Not Sell My Personal Information" switch off.

14. ADDITIONAL GDPR PRIVACY RIGHTS

For residents of the EU, Perfect365 provides you the following additional information about our data processing activities under the General Data Protection Regulation ("GDPR"). Terms used but not defined herein have the meanings ascribed to them in Art. 4 of the GDPR.

Legal Basis for Processing: In most instances, as further detailed in Sections 2 and 3, we process your Personal Data with your consent. In some instances, we may process your Personal Data to comply with our legal and regulatory obligations, for the performance of a contract with you or to take steps at your request before entering into a contract, or for legitimate purposes.

Transfers of Personal Data: Because of the international nature of our business, Personal Data collected and processed by us may be shared with, accessed by, and/or stored with our corporate office, affiliates, parents, subsidiaries and service providers, outside of the EEA and UK, including in the United States of America. Where personal data is transferred and/or stored outside of the EEA and the UK, appropriate safeguards are established to ensure an appropriate level of data protection outside the EEA as well. If we are transferring your Personal Data to another country outside of the EEA or UK, we will adhere to local requirements to implement safeguards in relation to the transfer. We may implement any mechanism that is approved under

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the EU-US Privacy Shield; and/or implementing GDPR standard contractual clauses with the recipient.

Rights of Data Subjects: EU residents have the following rights with respect to Perfect365's collection and processing of their Personal Data:

- Right of access: The right pursuant to Art. 15 GDPR to obtain information from the data controller as to whether or not your Personal Data is being processed. Where that is the case, you have the right to obtain access to the Personal Data and information on how it is being processed.
- Right to rectification: The right pursuant to Art. 16 GDPR to obtain from the data controller, without undue delay, the rectification of inaccurate Personal Data, as well as the right to have incomplete Personal Data completed.
- Right to erasure ("right to be forgotten"): The right pursuant to Art. 17 GDPR to request from the data controller, without undue delay, the erasure of your Personal Data, if the conditions of this provision are met.
- Right to restriction of processing: The right pursuant to Art. 18 GDPR to obtain restriction of processing, if the conditions of this provision are met.
- Right to data portability: The right pursuant to Art. 20 GDPR to receive the Personal Data in a structured, commonly-used and machine-readable format, and the right to transmit such data to another controller, if the conditions of this provision are met.
- Right to lodge a complaint with a supervisory authority: Without prejudice to any other administrative or judicial remedy, if you allege that the processing of your Personal Data infringes the GDPR, you have the right, pursuant to Art. 77 GDPR, to lodge a complaint with a supervisory authority, in particular in the Member State of your habitual residence, place of work, or place of the alleged infringement.
- Right to Object: You have the right to object to the processing of your personal data that we process based on legitimate interests as described in Section 3 above. If you file an objection on these grounds, we will, based on the information provided, re-evaluate the grounds for the processing and determine whether they outweigh your interests, rights and freedoms, and, if possible, stop further processing and delete your Personal Data if this is the case. You can exercise this right by contacting us (see contact details above under Section 1).

Automated Decision-Making: Perfect365 does not use automated decision making in the sense of Art. 22 GDPR.

You can exercise the foregoing rights at any time by contacting us at privacy@perfect365.com (see additional contact details below).

15. DO NOT TRACK

Do Not Track (DNT) is an optional browser setting that allows you to express your preferences regarding tracking by advertisers and other third-parties. We do not currently respond to DNT signals.

16. CHANGES TO OUR PRIVACY POLICY

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circumstances. Your continued use of Perfect365 or the Application after any modification to this Privacy Policy will constitute your acceptance of such modification.

17. HOW TO CONTACT US

The party responsible for the processing of personal data or information under this Privacy Policy is:

Perfect365, Inc.
Attn: Data Privacy Officer or Legal Department
101 Jefferson Drive
Menlo Park, CA 94025

If you have questions or concerns about Perfect365's Privacy Policy or to submit a request for information or exercise any of your rights, please contact us at privacy@perfect365.com.

Perfect365 Awards & Recognitions

A World Leader in Photo, Video, & AR Tech

Technology embedded in Over 1 Billion Smartphones

The Webby Awards Winner – Beauty & Fashion

The Stevie Awards: Gold Winner - Fashion & Beauty

BMA (Best Mobile App) Platinum Award Winner

Perfect365's Free Mobile Apps:

Perfect365 Makeup Photo Editor

Perfect365 Video Makeup Editor

Perfect365 Studio Photo Editor

Perfect365 SoReal AI Avatar

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